

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

VINCENT ORLANDO and THOMAS BAHAN,

Plaintiffs,

-against-

THE CITY OF NEW YORK; P.O. SUPERVISOR JOHN DOE
1; DET. CLYDE MOYER; LT. JUSTIN FARREN; DT3
MICHAEL FAHMY; DET. MATHEW REICH; DET. MARK
SCARLATELLI; DET. MARTIN BANGHART; DET.
STEVEN SPOSITO; P.O. JOHN DOES # 1-10; individual
defendants sued in their individual and official capacities. ,

Defendants.

**STIPULATION AND
ORDER OF DISMISSAL**

14-CV-5331 (ERK) (RER)

WHEREAS, the parties have reached a settlement agreement and now desire to resolve the remaining issues raised in this litigation, without further proceedings and without admitting any fault or liability;

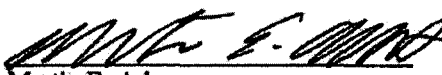
NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice; and

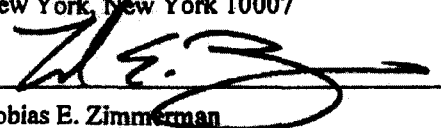
2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

Dated: New York, New York
March 24, 2015

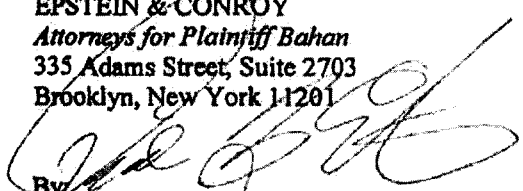
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65 Broadway, Suite 715
New York, New York 10006

By: 
Martin E. Adams
Attorney for Plaintiff Orlando

ZACHARY W. CARTER
Corporation Counsel of the
City of New York
*Attorney for Defendants City, Moyer,
Farren and Fahmy*
100 Church Street, 3rd Floor
New York, New York 10007

By: 
Tobias E. Zimmerman
Assistant Corporation Counsel

EPSTEIN & CONROY
Attorneys for Plaintiff Bahan
335 Adams Street, Suite 2703
Brooklyn, New York 11201

By: 
David B. Epstein
Attorney for Plaintiff Bahan

SO ORDERED:

/s/ ERK

HON. EDWARD R. KORMAN
UNITED STATES DISTRICT JUDGE

Dated: 3/25, 2015

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

VINCENT ORLANDO and THOMAS BAHAN,

Plaintiffs,

-against-

**STIPULATION OF
SETTLEMENT**

14-CV-5331 (ERK) (RER)

THE CITY OF NEW YORK; P.O. SUPERVISOR JOHN
DOE # 1; DET. CLYDE MOYER; LT. JUSTIN FARREN;
DT3 MICHAEL FAHMY; DET. MATHEW REICH; DET.
MARK SCARLATTELLI; DET. MARTIN BANGHART;
DET. STEVEN SPOSITO; P.O. JOHN DOES # 1-10;
individual defendants sued in their individual and official
capacities. ,

Defendants.

WHEREAS, plaintiffs commenced this action by filing a complaint on or about
September 12, 2014, alleging that the defendants violated plaintiffs' federal civil and state
common law rights; and

WHEREAS, defendants City, Detective Clyde Moyer, Lieutenant Justin Farren
and Detective Michael Fahmy have denied any and all liability arising out of plaintiffs'
allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation,
without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiffs have authorized their counsel to settle this matter on the
terms set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees except as specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiff Vincent Orlando the sum of Twenty Thousand (\$20,000.00) Dollars and plaintiff Thomas Bahan the sum of Twenty Thousand (\$20,000.00) Dollars in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of these sums, plaintiffs agree to dismissal of all the claims against the defendants and to release defendants City, Detective Moyer, Lieutenant Farren and Detective Fahmy; their successors or assigns; or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of plaintiffs' civil rights and any and all related state law claims, from the beginning of the world to the date of the General Releases, including claims for costs, expenses, and attorneys' fees.

3. Plaintiffs each shall execute and deliver to defendant City of New York's attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. Prior to tendering the requisite documents to effect this settlement, Medicare-recipient plaintiffs must obtain and submit a final demand letter from Medicare for the reimbursement of any conditional payments made by Medicare for any injury or condition that is the subject of this lawsuit. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. § 1395y(b) and 42 C.F.R. §§ 411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiffs' rights, or the rights of any

other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules or regulations of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations, except to enforce the terms of this agreement.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

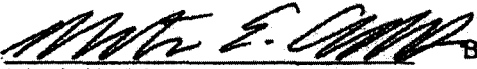
6. Plaintiffs agree to hold harmless defendants regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

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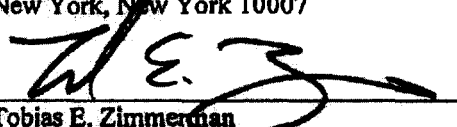
7. This Stipulation of Settlement contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation of Settlement regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
March 24, 2015

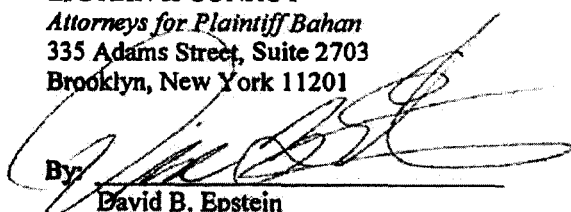
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